

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Appellate Jurisdiction)

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No.4915 of 2018 with

Criminal Appeal No. 12765 of 2018

Abdul Motalib

Appellant in Cril. Appl. No. 4915 of 2018

Maij Uddin @ Moin Uddin and others

Appellant in Cril. Appl. No. 12765 of 2018

-Vs-

The State and another

Mr. Md. Mukhleshur Rahman, Advocate

..... For the appellants in both appeals

Mr. S.M. Golam Mostofa Tara, DAG with

Mr. A. Monnan, AAG

....For the State

Mr. Omar Farook, Advocate

....for the respondent No.2 ACC

Heard on 06.05.2024, 04.06.2024

Judgment delivered on 06.06.2024

The above-mentioned criminal appeals have arisen out of the impugned judgment and order of conviction and sentence passed by the trial court. Therefore, both appeals were heard analogously and disposed of by this single judgment.

The above-mentioned criminal appeals under section 10 of the Criminal Law Amendment Act, 1958 is directed against the impugned judgment and order dated 18.03.2028 passed by the Special Judge, Court No.1, Dhaka in Special Case No. 5 of 2017 convicting the appellants under sections 420/409/467/468/471/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and sentencing them under section 420 of the Penal Code, 1860 to suffer rigorous imprisonment for 2 years and fine of Tk. 2000, in default, to suffer imprisonment for three months, sentencing them under section 467 of the Penal Code, 1860 to suffer rigorous imprisonment for 02(two) years and fine of Tk. 2000, in default, to suffer imprisonment for three months, under section 468 of the Penal Code, 1860 to suffer rigorous imprisonment for 02 (two) years along with fine, in default, to suffer rigorous imprisonment for 03 months, under section 471 of the Penal Code, 1860 to suffer rigorous imprisonment for two years along with fine, in default, to suffer imprisonment for three months, and under section 409 of the Penal Code, 1860 to suffer rigorous imprisonment for two years and fine of Tk. 49,08,750.

The prosecution case, in short, is that plots No. 15, 16, 19, 24 and 28 under Shitalakhsa mouza of the then Narayongonj Thana originally belonged to the M/S. Raj Brothers Limited and the said property were treated as enemy property by gazette notification published in Serial No. 143 in the year 1967. Subsequently, by registered deed No. 199943 dated 29.06.1974, the said property was sold to the Jute Trading Corporation at a price of Tk. 45,75,000. Subsequently, the Jute Trading Corporation was abolished and Bangladesh Jute Corporation was created and all the assets of Jute Trading Corporation were handed over to the Bangladesh Jute

Corporation. The said property was leased out on 05.11.1977 to M/S. Momtaz Jute Belling Ltd. Subsequently, in the meeting dated 28.03.1981 of the Jute Trading Corporation (JTC) a decision was taken to sell Plot No. 15 and 19 and notice was published on 18.04.1981 in the Daily Ittefaq and the Daily Observer under the signature of the accused Md. Maij Uddin, Secretary of the Jute Trading Corporation. The M/S. Mamtaz Jute Belling Company became the highest bidder and agreed to purchase the plots at a price of Tk. 12,75,000. Subsequently, it was found that in the tender submitted by Mamtaz Uddin, additional Plot No. 24 was also included. The accused Maij Uddin and Lutfar Rahman in connivance with each other in a meeting dated 13.06.1981 of the Jute Trading Corporation decided to sell the holding Nos. 15, 19 and 24 at price of Tk. 12,75,000 and directed the accused Mamtaz Belling to deposit the money. After depositing the money, the accused Lutfar Rahman by order dated 01.09.1984 directed the accused Abul Hossain, Inspector of JTC to hand over the possession of holding Nos. 15, 19 and 24. The accused Abul Hossain submitted the report on 29.06.1986 to hand over plots Nos. 15, 19, and 24 along with plots Nos. 16 and 28, total 1.455 acres of land to Ms Mamataj Belling Company Ltd. The accused Mamtaz Uddin is the owner of the Mamtaz Belling Ltd. The accused Abdul Motaleb, Office Assistant and Deputy Secretary Imamul Mohit made a recommendation on 10.11.1990 to hand over 5 plots and send the file to the legal advisor. The accused Nuruzzaman Khan, Additional Secretary of the JTC, was entrusted with the registration of the deed in favour of the purchaser Mamtaz Belling Limited and accordingly, he executed deed No. 1657 dated 21.5.1991 in favour of Mamtaz Belling Ltd transferring the plot Nos. 15, 16, 19, 24 and 28. The accused persons

in connivance with the accused Mamtaz Hossen, owner of Ms. Mamtaz Belling Ltd, transferred the additional 1.155 acres of land valued at Tk. 49,08,750.

The informant Md. Musleh Uddin was appointed as the investigating officer of the case by the Bureau of Anti-Corruption. During investigation, the investigating officer seized the alams, recorded the statement of witnesses under section 161 of the Code of Criminal Procedure, 1898 and after completing investigation, he found prima facie truth of the allegation made against the accused Maij Uddin, Lutfar Rahman, Enamul Muhit, Abul Hossein Chowdhury and submitted charge sheet under sections 420/409/467/468/471/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. After that, the Chief Metropolitan Magistrate, Dhaka sent the case to the Metropolitan Sessions Judge, Dhaka.

The Metropolitan Senior Special Judge, Dhaka took cognizance of the offence against the accused persons under sections 409/420/467/468/471/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and send the case to the Divisional Special Judge, Dhaka who framed charge against the accused persons under sections 409/420/467/468/471/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 which was read over and explained to the accused persons except accused Samsuddin Ahmed who was absconding. The prosecution examined 4 witnesses to prove the charge against the accused persons and the defence cross-examined P.Ws 2 and 3 and declined to cross-examine P.Ws. 1 and 4. After examination of the prosecution witnesses, the accused persons

present in court were examined under section 342 of the Code of Criminal Procedure, 1898 and they declined to adduce any D.W.

P.W. 1 Colonel Shariful Islam (Rtd.) is the Chairman of BJC, Dhaka. He stated that he is a patient with Parkinson's disease and he lost his memory. He could not remember anything about the occurrence. He submitted a medical certificate. The defence declined to cross-examine P.W. 1.

P.W.2 Khaza Ahmed Talukder stated that from 10.5.1977 to 31.12.2002 he was the Executive Engineer of the Bangladesh Jute Corporation. In 1981, the authority instructed him to prepare the valuation of the assets of the Raj Brothers and accordingly, he submitted the report. A decision was taken to sell the assets of Raj Brothers by tender. He was a member of the tender opening committee. After opening the tender, he sent a report to the concerned department. During cross-examination, he stated that he prepared the valuation report. He could not say whether he prepared the report for the entire property of Raj Brother Estate. He denied the suggestion that he was not a member of the tender opening committee. He stated that he could not remember when he made statement to the investigating officer. During cross-examination on behalf of accused Abul Hossain Chowdhury and Abdul Motaleb, he stated that he was not aware of the allegation made against the accused persons.

P.W. 3 Kamrul Islam is the Head Assistant(Rtd.) of Bangladesh Betar, Agargaon, Dhaka. He stated that in 1994 when he was on deputation with Jute Corporation as Assistant, Inspector Md. Lutfar Rahman seized the documents from Secretary Abdur Rab. He proved the seizure list as exhibit-1 and his signature on the seizure

list as exhibit-1/1 and handed over the documents to the Secretary. He proved the alams as exhibit-2 series. During cross-examination, he stated that he was not aware of the occurrence and seized documents.

P.W. 4 Belayet Hossen is the ASP, RAB-3, Dhaka. He stated that on 20.05.1995 he was posted as S.I. at Ramna Thana. On that day, he received the FIR from Muslim Uddin, Inspector of the Bureau of Anti-Corruption, and filled up the FIR form and lodged the FIR. He proved the FIR as exhibit-3 and his signature as exhibit-3/1. He filled up the FIR form as exhibit-3/Ka and his signature as exhibit-3Ka/1. The defence declined to cross-examine P.W.4.

The learned Advocate Mr Muklesur Rahman having filed an affidavit sworn on 19.05.2024 by Ferzana Akter Mukta, niece of the appellant Maij Uddin, annexed a death certificate issued by Kingstone Hospital, Pallabi, Dhaka, a certificate issued from the Rayerbazar Graveyard, Dhaka North City Corporation and the death certificate dated 14.07.2020 issued by Councilor Md. Humayun Rashid, Dhaka North City Corporation stating that the appellant Maij Uddin died on 07.07.2020 due to illness and was buried at Mirpur Graveyard. He further submits that accused Maij Uddin was the Secretary of Jute Corporation and the decision was taken by the Jute Corporation to sell the property to the highest bidder M/S. Mamtaz Belling Ltd and as per the decision of the Bangladesh Jute Corporation as members Secretary, the appellant only discharged his official duty following the decision taken by the Bangladesh Jute Corporation and the prosecution failed to prove the charge against the accused beyond all reasonable doubt. Therefore, he prayed for setting aside the fine awarded by the trial court.

The learned Advocate Mr Mokhlesure Rahman appearing on behalf of the appellants Enamul Muhit and Abul Hossein Chowdhury submits that following the decision of the Board of the Jute Corporation and the instruction of the then Secretary Maij Uddin, the appellants only handed over the possession of the disputed plots following the sale deed. He further submits that the informant and the investigating officer were not examined in the case and the prosecution only examined 4 witnesses out of 10 witnesses cited in the charge sheet and due to non-examination of the material witnesses defence was seriously prejudiced. He then submits that none of the prosecution witnesses mentioned the name of the appellants and the prosecution failed to prove the charge against the appellants beyond all reasonable doubt. Therefore, he prayed for allowing the appeal.

The learned Advocate Mr. Md. Omar Farook appearing on behalf of respondent No. 2 ACC in both the appeals submits that the accused Maij Uddin, Secretary of BJC, published a tender in the Daily Ittefaq and the Daily Observer to sell the holding Nos. 15 and 19 under Shitalakhsa mouza belonged to the BJC and accused persons in connivance with the highest bidder Mamtaz Uddin tempering the tender notice inserted plot No. 24 in the tender. Subsequently, suppressing the original tender notice in connivance with said Mamtaz Uddin obtained the order from the Board to sell Plot Nos. 15, 19 and 24. The accused persons mala fide to misappropriate the property of the BJC included the plot Nos. 16 and 28 in the deed and illegally transferred the holding Nos. 16, 24 and 28 along with holding Nos. 15 and 19. Thereby committed offence under sections 409/468 of the Penal Code, 1860 read with section

5(2) of the Prevention of Corruption Act, 1947. He prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocate Mr. Mukhlesur Rahman who appeared on behalf of the appellants and the learned Advocate Mr. Omar Farook who appeared on behalf of respondent No. 2 ACC in both the appeals and perused the evidence, impugned judgment and order passed by the court below and the records.

At the very outset, it is noted that the learned Advocate Mr. Mukseshur Rahman having filed an affidavit sworn on 19.05.2024 by one Farzana Akter Mukta, niece of the appellant Maij Uddin, annexed a death certificate issued by the Kingstone Hospital Ltd, Dhaka, a certificate issued by the Rayer Bazar Graveyard and a death certificate issued by Councilor Md. Humayun Rashid, Dhaka North City Corporation as annexure-x,x1 and x2 stating that during the pendency of the appeal, the appellant Maij Uddin died on 07.07.2000 due to his illness. No one raised any objection against the said affidavit. Since the appellant Maij Uddin died during the pendency of the appeal, I am of the view that the impugned judgment and order of conviction passed against the accused Maij Uddin is abated because of the provision made in section 431 of the Code of Criminal Procedure, 1898 and the sentence of fine imposed by the trial court against him is required to be disposed of considering the merit of the case.

On perusal of the records, it appears that the holding Nos. 15, 16, 19, 24, and 28 under Shitalakhsa Mouza, Narayangonj belonged to Bangladesh Jute Corporation Limited. During the trial of the case, P.W. 3 Md. Kamrul Islam proved all the documents relating to the

sale and handing over possession of the said plots as exhibit-2 series. The accused Maij Uddin, Secretary of the Bangladesh Jute Corporation Limited, published a tender notice on 18.04.1981 to sell the holding Nos. 15 and 19. Tempering the schedule of the said tender notice by different ink and handwriting inserted holding No. 24 in the records.

On perusal of the comparative statement of tender No. DS/JTC/J/Disposal-2/18-81/1152 reveals that after writing the holding Nos. 15 and 19, holding No. 24 was inserted by retyping '24' below the holding Nos. 15 and 19. The accused Md. Maij Uddin as Secretary of BJC by Memo No. DS/JTC/Disposal-2/80-81/259(3) dated 21.05.1981 instructed the Mamtaz Jute Belling Company to deposit the tender value of the holding No. 15,19 and 24 accepting the tender of the highest bidder Mamtaz Jute Belling Ltd.

In the 60th meeting of the Board of Directors of Jute Trading Corporation Limited held on 13.06.1981 a decision was taken to sell plots No. 15 19 and 24 and accused Maij Uddin was discharging his duty as Secretary of the Board which decided to sell the said three plots. After decision dated 13.06.1981, Deed No. 1657 dated 21.05.1991 was executed by the Bangladesh Jute Corporation Ltd inserting plot Nos. 15, 16, 19, 24 and 28, Sultan Gish Uddin Road, under Shitalakhsa Mouza, Narayangonj in the schedule. Before registration of the said deed, the accused Abul Hossen by letter dated 29.06.1985 written to the Deputy Secretary, Jute Trading Corporation, Head Office affirmed that as per direction and advertising of the Deputy Secretary, Jute Corporation Ltd contained in a memo dated 01.09.1984 he handed over the possession of the holding Nos. 15, 16, 19, 24 and 28, Sultan Giash Uddin Road,

Narayangonj belong to the JTC to the highest bidder Mamtaz Jute Belling Ltd.

The documents relating to the transfer of the plots were exhibited as exhibit-II series. A tender notice was published on 18.04.1981 to sell plot Nos. 15 and 19 by the BTC. Tempering the schedule of the said tender notice by different ink and handwriting holding No. 24 was inserted in the records and suppressing the fact as the Secretary of the Board, accused Maij Uddin fraudulently and mala fide obtained the approval of the 60th Board meeting of the JTC held on 28.03.1981 to sell plot No.24. No decision was taken by the Board to sell the holding Nos. 16 and 28. Subsequently, after the decision by the Board, the accused Maij Uddin, Enamul Muhit, Abul Hossein Chowdhury, Md. Motaleb and others in connivance with the Mamtaz Uddin, Proprietor of the M/s. Mamtaz Jute Belling Ltd, illegally executed deed No. 1657 dated 21.05.1991 and illegally handed over the possession of the plot Nos. 16, 24, 28.

After handing over the possession of the said plots, the accused Abdul Hossein Chowdhury issued the letter of possession on 23.06.2005 although the holding Nos. 24 and 28 were not sold by the Board. The accused Lutfar Rahman by letter dated 01.09.1984 directed the accused Abdul Hossein Chowdhury to hand over the possession of the plots to the M/S. Mamtaz Jute Belling Ltd. The accused Motaleb who is the billing assistant made a recommendation to initiate the file to hand over the possession.

As regards the submission made by the learned Advocate regarding the non-examination of the informant and the Investigating Officer, it is found that the trial court by order dated 18.03.2016 after perusal of the records arrived at the findings

regarding the non-examination of the witnesses cited in the charge sheet that the prosecution case is based on the documentary evidence i.e. exhibit-II series. On perusal of the exhibit-II series as discussed herein above it transpires that the documentary evidence (exhibit-II series) proved by the prosecution is self-explanatory and during the trial of the case, the accused persons did not deny their signatures on the official documents i.e. exhibits-II series. During the trial, the informant and the investigating officer Musleh Uddin died. Therefore, there was no scope to examine the informant and the investigating officer, in the case. I am of the view that due to the non-examination of the informant and investigating officer, the defence was not prejudiced.

It is found that the accused persons were serving with the Jute Corporation of Bangladesh and they were entrusted with the property of the Jute Corporation of Bangladesh but the accused persons in connivance with Mamtaz Uddin who was the owner of the M/S. Mamtaz Jute Belling Ltd by tempering the tender notice inserted Plot No. 24 in the records and suppressing the facts illegally sold Plot No. 24 to Mamataz Jute Belling Ltd. Although plots No. 16 and 28 were not sold to Mamtaz Jute Belling Ltd, the accused persons fraudulently and malafide to misappropriate the plots illegally handed over the possession of plot Nos. 16 and 28 without any valid documents of sale. Thereby the accused persons committed offence under section 409 of the Penal Code read with section 5(2) of the Prevention of Corruption Act, 1947.

Considering the evidence adduced by the parties and the gravity of the offence, I am of the view that the ends of justice would

be best served if the sentence passed by the trial court against the accused persons is modified as under:

The accused Enamul Muhit, Abul Hossein Chowdhury, and Abdul Motalib are found guilty of the offence under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and they are sentenced under section 409 of the Penal Code, 1860 to suffer rigorous imprisonment for 2 (two) years and fine of Tk. 49,08,750. The order of the trial court as regards the confiscation of plot Nos. 16, 24 and 28 in favour of the state is affirmed by this court.

The Criminal Appeal No. 12765 of 2018 so far relates to judgment and order of conviction of appellant Maij Uddin is abated. The appellant Maij Uddin is sentenced to pay a fine of Tk. 49,08,750 which is recoverable following law.

The Criminal Appeal No. 12765 of 2008 so far relates to accused Enamul Muhit and Abul Hossein Chowdhury and Criminal Appeal No. 4915 of 2018 are disposed of with modification of sentence.

The appellants Enamul Muhit, Abul Hossain Chowdhury and Abdul Motalib are directed to surrender before the trial court forthwith.

The trial Court is directed to do the needful.

Send down the LCR at once.